Tentative Rulings for August 4, 2026
Department 7

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 766 6465

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO STRIKE AND VACATE THE ORDER OF MAY 5, 2026 DENYING THE RECONSIDERATION OF THE ORDER OF THE JANUARY 29, 2026 SUSTAINING DEMURRER
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO STRIKE AND VACATE THE ORDER OF MAY 5, 2026 IN FAVOR OF DEFENDANT NATIONWIDE POSTING & PUBLICATION'S DEMURRER
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	PLAINTIFFS' REPLY AND MOTION TO COMPEL NONPARTY NON-DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION, SET ONE
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO VACATE THE ORDER SUSTAINING THE DEMURRER ON 3RD AMENDED COMPLAINT
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON	MOTION TO VACATE THE ORDER SUSTAINING THE MOTION TO STRIKE THE 3RD AMENDED COMPLAINT

Tentative Ruling: Plaintiff's Motion to Vacate Order on motion to strike second, third, fourth, fifth, and sixth causes of action alleged in the Third Amended Complaint is denied.

Plaintiff's Motion to Vacate Order on Demurrer to first cause of action alleged in the Third Amended Complaint is denied.

Now before the Court is Plaintiffs' motion to vacate the Court's May 05, 2026, order striking second, third, fourth, fifth, and sixth causes of action from Plaintiffs' TAC and motion to vacate the Court's May 05, 2026, order sustaining the demurrer to the first cause of action alleged in the TAC. Plaintiffs assert that the Court was without jurisdiction to hear the motion to strike and the demurrer filed by a non-party to this action because BONY is not a named defendant in this case. On that basis, Plaintiffs request that the Court vacate its orders pursuant to Code of Civil Procedure section 473, subdivision (d), and reinstate their TAC. The motions must be denied.

What Plaintiffs have labeled as motions to vacate are treated as motions for reconsideration as they are seeking the Court to reconsider its rulings and to revoke them. Courts have disregarded the labeling of the motion, treating the substance of the motion as what mattered and not its label. (*See A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1064.)

On May 06, 2026, the Court granted BONY's motion to strike the second, third, fourth, fifth, and sixth causes of action of the TAC. On that same date, the Court sustained BONY's demurrer to the first cause of action of the TAC without leave to amend. Plaintiffs argue that the Court lacked jurisdiction to rule on BONY's demurrer or to strike the causes of action alleged in the TAC because BONY is a nonparty to the action which is not named in the TAC. They argue that BONY cannot insert itself in this lawsuit because Plaintiffs has only named the securitized trust as a defendant in this case, i.e., Holders of the CIT Mortgage Loan Trust, 2007-1 Asset-Backed Certificates, Series 2007-1. They assert that only the party to the action may challenge the legal sufficiency of the pleading and therefore the rulings on the motion to strike and demurrer were improper and must be vacated. These arguments fail.

First, Plaintiffs have not shown they are entitled to relief under Code of Civil Procedure section 437, subdivision (d) on the ground that this Court lacks personal and subject matter jurisdiction. Section 437(d) provides that "[t]he court may … on motion of either party after notice to the other party set aside any void judgment or order." (Code Civ. Proc., § 473(d).) Here, in support of their jurisdictional attack, Plaintiffs have not presented any competent evidence of BONY's lack of capacity as a proper party to appear on behalf of the securitized trust; but only assertions. Furthermore, in order to undo rulings on prior matters, Plaintiffs seeking reconsideration must meet the requirements of Code of Civil Procedure section 1008.

Here, Plaintiffs have failed to meet the standards of Code of Civil Procedure section 1008 by failing to identify in their motions any new or different facts, circumstances, or law, that would justify the Court's reconsideration of its May 06, 2026 rulings granting the motion to strike and sustaining the demurrer. Nor does Plaintiff James Lee McConnell explain in his declarations in support of the motions why any supposed new information could not have been produced with reasonable due diligence at the hearing on these matters.

Code of Civil Procedure section 1008, subdivision (a) provides in relevant parts:

> When an application for an order has been made to a judge, or to a court, and…granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

"A motion for reconsideration must be 'based upon new or different facts, circumstances, or law." (*People v. Safety National Casualty Corp*. (2010) 186 Cal.App.4th 959, 974.) "To merit reconsideration, a party must also provide a satisfactory reason why it was unable to present its 'new' evidence at the original hearing." (*Ibid*.)

Rather than explaining how any newly discovered information justifies the Court's reconsideration of the rulings on BONY's motion to strike and demurrer, they merely reiterate the arguments advanced in the oppositions by challenging the Court's jurisdiction to hear matters filed by a non-party because BONY is not a named defendant in the lawsuit. The motions are insufficient to meet the procedural requirements of section 1008 and are denied for this reason.

Otherwise, as to all other Motions now before the court, they are denied as set forth below.

Plaintiffs argue that the Court lacked jurisdiction to rule on BONY's demurrer or to strike the causes of action alleged in their pleadings because BONY is a nonparty to the action which is not named in this action. They argue that BONY cannot insert itself in this lawsuit because Plaintiffs have only named the holders of the securitized trust as a defendant in this case, i.e., Holders of the CIT Mortgage Loan Trust, 2007-1 Asset-Backed Certificates, Series 2007-1. They assert that only the party to the action may challenge the legal sufficiency of the pleading and therefore the rulings on the motion to strike and demurrer were improper and must be vacated. They also seek to compel the holders of the securitized trust to respond to their written discovery requests instead of BONY. Plaintiffs' arguments are without merit. Nevertheless, the Court need not decide on the motions on the merits as the motions are not properly before the Court.

The Court is without jurisdiction to rule on the motion. On May 28, 2026, as to Defendant BONY (The Bank of New York, not in its individual capacity but solely as trustee on behalf of the Holders of the CIT Mortgage Loan Trust, 2007-1 Asset-Backed Certificates, Series 2007-1 erroneously sued as Holders of the CIT Mortgage Loan Trust 2007-1 Asset-Backed Certificates, Series 2007-1), this Court entered judgment of dismissal after sustaining Defendant's demurrer and granting the motion to strike as to the TAC, leaving no claims operative against Defendant.

The Court's entry of judgment dismissing the action after sustaining the demurrer and granting motion to strike, without leave to amend, divested the Court's jurisdiction to rule on the motion. (*Safeco Ins. Co. of Illinois v. Architectural Facades Unlimited, Inc.* (2005) 134 Cal.App.4th 1477, 1482 ["It is well settled that entry of judgment divests the trial court of authority to rule on a motion for reconsideration"]; California Dental Association v. California Dental Hygienists' Association (1990) 222 Cal.App.3d 49, 59 ["an order of dismissal following sustaining of a demurrer without leave to amend … is a judgment…."].) "When such an order is regularly made the trial court has no power to correct it or set it aside" and "reviewable only on appeal." (*Harris v. Board of Ed. Of City and County of San Francisco* (1957) 152 Cal.App.2d 677, 680; *Daar v. Yellow Cab Co.* (1967) Cal.2d 695, 699.)

Although a judgment entered where the trial court lacked jurisdiction is void and may be vacated by the Court at any time (Code Civ. Proc., § 473(d)), Plaintiffs present no evidence to show that the Court's judgment of dismissal was not regularly made and must be vacated on such ground. Code of Civil Procedure section 437, subdivision (d) provides that "[t]he court may … on motion of either party after notice to the other party set aside any void judgment or order." (Code Civ. Proc., § 473(d).) Here, in support of their jurisdictional attack, Plaintiffs have not presented any competent evidence of BONY's lack of capacity as a proper party to appear on behalf of the holder's of the securitized trust; they only present assertions. Here, the TAC improperly named the holders of the securitized trust where "a trust is simply a collection of assets held for the benefit of designated beneficiaries" and therefore has no ability to sue or be sued, or otherwise act independently from a trustee. (*Dupree v. CIT Bank* (2023) 92 Cal.App.5th 142, 157.) "In order for a civil action to be prosecuted, there must be some existing entity aimed at by the processes of the law, and against whom the court's judgment will operate." (*Tanner v. Estate of Best* (1940) 40 Cal.App.2d 442, 445.) Despite the defect in naming the party, BONY voluntarily appeared in its proper name to defend the action on behalf of erroneously named Defendant. " 'A party may appear though he is not named in the complaint' " and submit to the jurisdiction of the Court. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1146.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507032	LEE VS BUCKNER HEAVYLIFT CRANES	MOTION TO SET ASIDE DEFAULT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT OF ROBERT ROY LEE BY BUCKNER HEAVYLIFT CRANES

Tentative Ruling: Defendant's UNOPPOSED Motion to Set Aside Entry of Default and Default Judgment is granted.

Order to Show Cause is set for 9/23/26, as to why sanctions not to exceed $1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFF AND ANTHONY MODARELLI.

FACTUAL TIMELINE

Based on the evidence presented in the declarations of Stephan Choo and Paul P. Burghardt, the following timeline is established:

- December 15, 2025: Plaintiff Robert Roy Lee filed the Complaint alleging negligence and negligent hiring, supervision, and retention.
- January 22, 2026: Plaintiff purportedly served the Summons and Complaint on Defendant via personal service.
- April 8, 2026: Plaintiff filed a Proof of Service for a Statement of Damages. Defendant asserts this was its first actual notice of the lawsuit.
- April 29, 2026: Plaintiff filed a Request for Entry of Default.

- May 5, 2026: Defendant's General Counsel, Paul Burghardt, emailed Plaintiff's counsel explaining the lack of notice and requesting a stipulation to set aside the default.
- May 13, 2026: Defendant formally retained Ropers Majeski PC as counsel.
- May 15–27, 2026: Defense counsel made multiple attempts via email and telephone to stipulate to set aside the default.
- May 27, 2026: Plaintiff's counsel responded, refusing to stipulate to set aside the default.
- June 2, 2026: Defendant filed the present Motion to Set Aside Default

The Court finds that Defendant has met its burden under Code of Civil Procedure section 473.5, which allows relief when service has not resulted in "actual notice to a party in time to defend the action." CCP § 473.5(a) provides: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action." (CCP § 473.5(a).) "This section is designed to provide relief where there has been *proper* service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend." (Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2022) ¶ 5:420, p. 5-1222 [italics in original]. Defendant provided sworn testimony that it has no internal records of being served in January 2026 and only became aware of the litigation upon receipt of the Statement of Damages in April 2026. (Burghart Decl. ¶¶ 2-3).

The evidence indicates that Defendant's lack of notice was not caused by avoidance of service or inexcusable neglect. Defendant was not avoiding service, as evidenced by its successful receipt of later documents at its registered agent. Defendant acted promptly and proactively to resolve the default once actual notice was acquired.

The Court further notes that Plaintiff has filed no opposition to this motion. Under California law, a failure to oppose may be considered by the Court as an admission that the motion is meritorious. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20. By failing to brief the issue, any arguments against setting aside the default are deemed abandoned. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20. By failing to brief the issue, any arguments against setting aside the default are deemed abandoned.

California law strongly favors adjudicating controversies on their merits rather than by default. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547. Because Defendant moved promptly for relief and there is no showing of prejudice to the Plaintiff, "very slight evidence" is required to justify setting aside the default.

3.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2602366	HAYDEN VS WAL-MART ASSOCIATES	DEMURRER ON COMPLAINT FOR OTHER EMPLOYMENT OF ROBERT HAYDEN BY WAL-MART ASSOCIATES, WAL-MART

Tentative Ruling: Defendants Wal-Mart Associates, Inc. and Walmart, Inc.'s demurrer to the seventh, sixteenth, and eighteenth causes of action is overruled; as to the fourth, fifth, eighth, ninth, eleventh, twelfth, thirteenth, fourteenth, and fifteenth causes of action, it is sustained with leave to amend within 20 days.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A special demurrer lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Id.*)

Fourth Cause of Action – California Family Rights Act

Under Government Code § 12945.2(a), it is unlawful for an employer not to provide up to 12 workweeks of family care and medical leave for a qualified employee. "Family care and medical leave" includes "[l]eave because of an employee's own serious health condition that makes the employee unable to perform the functions of the position of that employee, except for leave taken for disability on account of pregnancy, childbirth, or related medical conditions." (Gov. Code § 12945.2(c)(3).)

Wal-Mart argues this cause of action fails because Plaintiff "…does not plead that he had a right to take CFRA leave." (Demurrer, p. 3:26-4:1.) The complaint states that Plaintiff "was eligible for CFRA protected leave in November 2024 in both hours worked and time employed by Defendants. Defendants were covered by the CFRA because they employ at least five employees." (Complaint, ¶ 73.) While there are allegations regarding requests for accommodations for various injuries incurred while working, there are no allegations that Plaintiff requested medical leave or was denied same.

The demurrer to the fourth cause of action is sustained.

Fifth Cause of Action – Race Discrimination

Under California law, to establish a discrimination claim under FEHA, a plaintiff must show: (1) they belong to a protected class; (2) they were qualified for the position; (3) they suffered an adverse employment action; and (4) there are circumstances suggesting that the adverse action was taken because of the plaintiff's protected status. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

Here, the complaint states that on 5/15/2025, Wal-Mart terminated Plaintiff. (Complaint, ¶ 42.) There are no allegations that tie the termination, or any other adverse employment action, to the racial comments made by various employees to Plaintiff.

The demurrer to the fifth cause of action is sustained.

Seventh Cause of Action – Racial Harassment

"To prevail on a claim of hostile work environment under FEHA, an employee must show he or she was subjected to harassing conduct that was (1) unwelcome, (2) because of sex or gender, and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment. [Citation.]" (*Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 692.)

Wal-Mart argues the complaint fails to allege sufficient circumstances to establish a severe or persuasive environment. The complaint includes allegation of uses of the n-word, while also generally referencing other racist comments including "boy" and being called a "faggot". (Complaint, ¶¶ 15,19, and 23-24.) However, case law holds that even a single use of a racial epithet by a supervisor in the presence of subordinates can be actionable. (*Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 36.) Wal-Mart's citation to an unreported, federal case in support of this argument is improper. [Counsel is admonished, unreported cases are not citable and federal cases are only persuasive in the absence of state-authority](Demurrer, p. 6:28-7:3.) [Counsel is admonished, unreported cases are not citable and federal cases are only persuasive in the absence of state-authority] The allegations are thus sufficient to survive demurrer.

Eighth and Ninth Causes of Action – Retaliation

The elements of a claim for retaliation under FEHA are "(1) the employee's engagement in a protected activity, i.e. opposing any practices forbidden under this part; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation." (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 713.)

The complaint has two causes of action for retaliation under Government Code § 12940(m)(2) and 12940(h). Subdivision (h) prevents retaliation in response to filing a complaint and subdivision (m)(2) prevents retaliation for requesting an accommodation. While the complaint alleges Plaintiff made complaints regarding racial discrimination and workplace safety, as well as various requests for accommodations due to medical issues, the complaint does not tie any of these issues to a specific adverse employment action.

The demurrer to the eighth and ninth causes of action is sustained.

Eleventh Cause of Action – Wrongful Termination in Violation of Public Policy

For a wrongful termination in violation of public policy claim, the plaintiff must demonstrate: (1) an employer-employee relationship; (2) the termination of plaintiff's employment was a violation of public policy; and (3) the termination caused plaintiff's damage. (See *Holmes v. General Dynamics Corp.* (1993) 17 Cal.App.4th 1418, 1426, n.8.) Particularly, the plaintiff must establish that he was terminated in violation of a policy that is: (1) based in either constitutional or statutory provisions; (2) public, in the sense that it inures a benefit to the public rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) substantial and fundamental. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894.)

As with the other causes of action, while the complaint identifies various public policies Wal-Mart is alleged to have violated, there are no factual allegations that tie those violations to Plaintiff's termination. (Complaint, ¶ 139.)

The demurrer to the eleventh cause of action is sustained.

Twelfth through Fifteenth Causes of Action – Labor Code Violations

The twelfth through fifteenth causes of action allege violations of Labor Code §§ 1102.5, 6310, 98.6, and 232.5 respectively. Each of these causes of action allege versions of retaliation for complaints regarding harassment, discrimination, unsafe working conditions, and requests for accommodations. Statutory causes of action must be alleged with particularity. (*Gates v. Superior Court* (1995) 32 Cal.App.4th 481, 493-494.) The issue is again the lack of specific factual allegations that tie the actions taken by Plaintiff to termination or any other adverse employment action.

The demurrer to the twelfth, thirteenth, fourteenth, and fifteenth cause of action is sustained.

Sixteenth Vause of Action – PAGA

Wal-Mart argues the PAGA cause of action fails because Plaintiff fails to identify which specific Labor Code sections Wal-Mart is alleged to have violated. Wal-Mart also argues the complaint contains allegations not raised in the LWDA notice, which are thus waived.

The Private Attorney General Act ("PAGA") (Labor Code §2699) permits employees to recover civil penalties for violation of the Labor Code. As explained by *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 82:

> A PAGA claim is legally and conceptually different from an employee's own suit for damages and statutory penalties. An employee suing under PAGA "does so as the proxy or agent of the state's labor law enforcement agencies." [Citation.] Every PAGA claim is "a dispute between an employer and the state." [Citations.] Moreover, the civil penalties a PAGA plaintiff may recover on the state's behalf are distinct from the statutory damages or penalties that may be available to employees suing for individual violations. [Citation.] Relief under PAGA is designed primarily to benefit the general public, not the party bringing the action. [Citations.] "A PAGA representative action is therefore a type of qui tam action," conforming to all "traditional criteria, except that a portion of the penalty goes not only to the citizen bringing the suit but to all employees affected by the Labor Code violation." [Citation.] The "government entity on whose behalf the plaintiff files suit is always the real party in interest."

A plaintiff must allege that she personally suffered a violation of the Labor Code by the defendant employer. (*Rodriguez v. Lawrence Equip., Inc.* (2024) 106 Cal.App.5th 645, 656.) Here, the complaint incorporates by reference numerous Labor Code violations, including the seventeenth cause of action which is not challenged via this demurrer.

Regarding the LWDA notice, it is not attached to the complaint nor does Wal-Mart request judicial notice of same. Wal-Mart merely attaches what is purported to be the LWDA notice to an attorney declaration. This goes outside the four corners of the complaint and the argument is rejected.

Notwithstanding, this argument is not well taken at the pleading stage. Before bringing a civil action for statutory penalties under PAGA, an employee must comply with Lab. Code § 2699.3. (*Arias v. Sup. Ct.* (2009) 46 Cal.4th 969, 981.) Lab. Code § 2699.3(a)(1)(A) provides that an aggrieved employee or representative shall give written notice by online filing with the LWDA and by certified mail to the employer of the specific provisions of this code alleged to have been violated, including the facts and theories to support the alleged violation. (Lab. Code § 2699.3(a)(1)(A).) The prelitigation notice requires more than bare allegations of Labor Code violations. (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 836.) It must provide sufficient information to allow the LWDA "'to intelligently assess the seriousness of the alleged violations' or give the employer enough information 'to determine what policies or practices are being complained of so as to know whether to fold or fight.'" (*Id.*, at p. 837.) This allows the LWDA the opportunity to "act first on more 'serious' violations such as wage and hour violations and give[s] employers an opportunity to cure less serious violations." (*Santos v. El Guapos Tacos, LLC* (2021) 72 Cal.App.5th 363, 369.) It also allows "the employer to submit a response to [the LWDA] [citation], again thereby promoting an informed agency decision as to whether to allocate resources toward an investigation." (*Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 545-546.) As attached to counsel's declaration, the LWDA letter states sufficient facts to place Wal-Mart on notice of the complaint's allegations. (Cascino Dec., Exhibit 2.) This is sufficient for pleading purposes.

Eighteenth Cause of Action – Wages at Separation

Wal-Mart challenges the eighteenth cause of action with support via citation to an unreported federal case and CACI. Neither is proper. The complaint alleges that Plaintiff was entitled to unpaid wages at the time employment was terminated and that Wal-Mart failed to promptly compensate Plaintiff for same. (Complaint, ¶¶ 196.) This is sufficient for pleading purposes.